

Smt. Pratibha Gupta v. State of U.P.

High Court of Judicature at Allahabad · Division Bench (Court No. 40) · 5 October 2023 · 2023:AHC:191463-DB · WRIT - C No. 27493 of 2023 · **Consent disposal; fresh clause 6.14 application to be decided as per law**

HEADNOTE

A writ seeking quashing of the order dated 15 April 2023 and off-season benefits for an agricultural industry was, on consent, disposed of with the observation that a fresh application under clause 6.14 of the U.P. Electricity Supply Code, 2005, if moved within one week, shall be decided by the competent authority as per law. Instalments were not fixed and the policy objection was not decided.

FACTUAL SUMMARY

Smt. Pratibha Gupta sought quashing of the respondents' order dated 15 April 2023 and a direction for off-season benefits under the government policy for agricultural industry. The contesting respondents' counsel had objected that paragraph 4 of the policy made the claim unsustainable. At the hearing she stated, on instructions, that she would clear the outstanding electricity dues if easy instalments were fixed under clause 6.14 of the U.P. Electricity Supply Code, 2005. The department said it wanted the entire dues realised and would consider a fresh application as per law.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

Fresh instalment application under clause 6.14

HOLDING

On consent the writ was disposed of with the observation that if the petitioner moved a fresh application before the competent authority under clause 6.14 of the U.P. Electricity Supply Code, 2005 within one week, that authority shall dispose of the application as per law. The Court did not itself fix instalments or quash the order dated 15 April 2023. ¶ 3-6

PRINCIPLE TAGS

installment-payment-clause-6.14 The petitioner offered to clear outstanding electricity dues if easy instalments were fixed under clause 6.14. The Court did not grant instalments; on consent it directed only that a fresh application under that clause, moved within a week, be disposed of by the competent authority as per law. ¶ 3-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ORDER DATED 15 APRIL 2023 WAS LIABLE TO BE QUASHED, AND WHETHER THE PETITIONER WAS ENTITLED TO OFF-SEASON BENEFITS UNDER THE GOVERNMENT POLICY FOR AGRICULTURAL INDUSTRY.

On 20 September 2023 the contesting respondents objected that paragraph 4 of the policy made the claim unsustainable. That objection was not ruled upon. ¶ 2

NOT DECIDED — WHETHER EASY INSTALMENTS OF THE OUTSTANDING ELECTRICITY DUES HAD TO BE FIXED UNDER CLAUSE 6.14.

The competent authority was left to dispose of a fresh application as per law. ¶ 3-6

